



COLORADO

Department of
Regulatory Agencies

Division of Professions and Occupations

Healthcare Branch
Mental Health Boards

MAILED CERTIFIED MAIL

August 9, 2016

Timothy Kavanagh

Re: Case No. 2016-841
Letter of Admonition

Dear Mr. Kavanagh:

On July 22, 2016, the State Board of Licensed Professional Counselors Examiners (Board) reviewed the available material concerning the above referenced case. After thorough review, the Board found probable cause to believe you violated C.R.S. §12-43-214 and §12-43-222 (p) and issues this Letter of Admonition in accordance with C.R.S. §12-43-224(3)(d).

Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide a mandatory disclosure of information to clients during the initial client contact. The licensee did not have a signed mandatory disclosure statement for the client, which is a statutory requirement. Please ensure to provide this for every client.

By this letter, the Board takes the formal disciplinary action of admonishing you for the conduct specified above, and warns you that repetition of such practice may lead to imposition of more severe disciplinary action. This letter is an open public record and a reportable action to individuals or entities requesting disciplinary information. The Board strongly encourages you to review and understand the Mental Health Practice Act requirements and obligations for the practice of counseling in Colorado.

In accordance with C.R.S. §12-43-224(3)(d), the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Catherine Rodriguez, Program Director, at the address listed below. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with C.R.S. §12-43-224(3)(d), and applicable rules.

If you have further questions or concerns, please visit our website at <https://www.colorado.gov/dora> or you can contact our office at Dora_mentalhealthboard@state.co.us or by calling (303) 894-7800.

Sincerely,

FOR THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

Catherine Rodriguez
Program Director